

## LEAVE WITHOUT PAY

The School Board recognizes that in certain instances an employee may need to have extended leave. For that purpose, the School Board establishes this Policy enabling it to grant discretionary leave without pay for reasons other than those specified in statute.

The School Board reserves the right to specify the conditions under which leave without pay may be taken and to modify these conditions as it sees fit.

With the exception of leave pursuant to the Family Medical Leave Act and the Americans With Disability Act, leave without pay is not a regular leave benefit; it is a discretionary leave provision designed to address unusual circumstances that cannot be addressed by other forms of leave. The abuse of leave without pay shall be subject to disciplinary action, up to and including termination.

The Superintendent shall develop regulations to implement this Policy and provide the terms and circumstances for the utilization of leave without pay.

[Former Policy 7-58]

Adopted: 6/13/72

Revised: 7/1/88, 9/14/93, 10/25/94, 12/13/94, 5/28/96, 6/24/97, 7/1/97, 8/8/06, 10/13/09

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Legal Ref: Code of Virginia § [22.1-296](#)